

Council Meeting

March 27, 2019

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The Claremont City Council held a meeting on Wednesday, March 27, 2019, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O'Hearne
Ward III Councilor Jonathan Stone
Mayor Charlene Lovett
At-Large Councilor Jeremy Zullo
At-Large Councilor Abigail Kier
Ward II Councilor Scott Pope

Also present:

John MacLean, Interim City Manager
Mary Walter, Finance Director

Members of the Council absent were:

Assistant Mayor Allen Damren
At-Large Councilor Nicholas Koloski

AGENDA CHANGES

None

MAYOR'S NOTES

Mr. Bob King from Keene spoke and said that a couple of years ago he came before the council when his company was trying to buy the hydro plant that had sat for 6 years. We bought it and have been paying taxes for two years.

Mr. King is here tonight to recognize Mayor Lovett for her leadership on childhood lead poisoning and lead mitigation. He is the board chair of the non-profit environmental group, Conservation Law Foundation. This past December CLF had a gala where they recognized, from each New England state they are active, a local hero. Out of the entire State of NH we chose Mayor Lovett for her outstanding work on lead poisoning.

Mayor Lovett thanked everyone and said we would not have had the success we did without the efforts of the entire community.

Mayor Lovett mentioned that Claremont's own Evelyn Cormier has moved onto the next level of competition on American Idol.

The Claremont Girls Middle School basketball team finished the season 25-0.

She received a note from Assistant Superintendent Cory LeClair that the April 11th joint meeting with the school needs to be rescheduled.

CITIZEN'S FORUM

Maggie Monroe-Cassel, Executive Director of TLC Family Resource Center, noted that April is Child Abuse Prevention and Family Strengthening Month. She gave pinwheels to each councilor, (pinwheels are now a National Symbol of a healthy childhood) as well as a calendar put out by NH Children's Trust. She encouraged everyone to wear blue on April 5th in recognition of "Stand Up for Great Childhoods". She also extended an invitation to their Annual Dinner being held on April 4th; the speaker will be Sam Drazin.

Mr. Norman Blouin, Ward 3, questioned if council ever wondered why there is no one ever here at the meeting, and thanked the ones that are here. He stated that unless there is a big issue no one is here. He said people in the audience should be able to hear what the councilors are saying. Mr. Pope had asked him about TV service, he said where he lives it will never happen. We live in a divided town as far as the power and phone companies and he can't sit at home and watch this meeting on tv. He told the council they need to do a better job at getting people to come to the meetings. He feels that the only outside attraction or destination in Claremont is Washington St. He said he has a problem with the council talking to the same company that hired the last city manager. He also feels that you cannot sell a house here for a decent price.

Francis Gauthier, Ward 1, came to talk about 139 Main St. He's heard that the City is going to help New England Family Housing with their wall and that taxpayer money should not be used for this.

Glynis Hart, speaking as a person not a reporter, moved here and likes it. Claremont has a lot of strengths and a wide-open job market. Just because people are not here at the meeting does not mean they are not paying attention. She also thanked the council for the job they are doing.

Gary Dickerman, Ward 2, Conservation Commission Chairman, also thanked the council for the job they do. The Commission has invited Doug Cygan, NH Invasive Species Coordinator, to come to Claremont on April 18, 2019 @ 6:00pm here in the Council Chambers for a presentation on Invasive Species. On a personal note, to those that spoke about how poor the real estate market is, he said he listed his house 1 week ago has 2 offers and it is under contract for substantially more than the assessed value.

Mayor Lovett closed citizens forum.

OLD BUSINESS

City Manager Search Update

Mayor Lovett gave an overview of where we are at and gave a handout so there was an apples to apples comparison of doing the search local or hiring GovHR.

Mr. Pope asked if Primex will be coming to answer our questions directly?

Mayor Lovett stated she guessed they would come when it was time to meet with the screening committee and also reiterated that Primex would not be leading the search they would only be there for support and guidance.

Ms. Kier asked what our committee would look like, since the county used elected officials? Also stated Primex does look better than she thought it would but is still in favor of GovHR.

Mr. Stone stated there are companies in NH that do background checks for a reasonable fee.

Ms. Kier stated in the Primex module there is a lot of clerical, some we can do but we would have to lean on city staff and wanted Mr. MacLean's input on that.

Mr. MacLean told the council just know that time spent on this will take away from their other duties.

Mayor Lovett pointed out that there was an error on the local search, the phases only go out 8 weeks and after reading the county minutes it was a longer period of time. She will rework the milestones for each phase.

Mayor Lovett reiterated that if we do the local search, we have to dedicated members as this will be very time consuming.

Ms. Lessard stated we have to remember we have no money in our budget to hire a company.

Mr. O'Hearne believes, after reviewing the local search module, the council needs to be the screening committee.

Mr. Joe Osgood, Ward 1, wanted to speak and stated that he was here last night and is in favor of the local process. He is not in favor of a lot of people from the public being on the committee. He asked the Mayor if she asked Commissioner Barrette about his interest on being on the committee. Mayor Lovett stated she did not ask him when she spoke with him.

A Motion was made by Mr. Stone and seconded by Mr. Zullo to go with a local search for the next city manager position.

Mayor Lovett asked if Mr. Stone would be willing to amend his motion to state if 20 or less applications were received that we will reconsider our chosen model. Mr. Stone and Mr. Zullo agreed.

Voice vote of amendment carried 7-0.

Voice vote of motion carried 6-1 with Ms. Keir voting no.

Discussion followed about everyone's thoughts on who should make up the screening committee.

A Motion was made by Ms. Kier and seconded by Mr. Zullo that the screening committee shall consist of 9 members total; 3 Councilors, 4 Members of the Public or Citizens of Claremont and 2 Department Heads.

Voice Vote: Motion carried 6-1 with Mr. Pope voting no

Mr. MacLean suggested to the council that they give the screening committee clear charge of what they have to do and who will chair the group.

It was agreed on by the council that the full screening committee will elect a chair.

A Motion was made by Mayor Lovett and seconded by Ms. Kier that the council will be charging the screening committee to receive all resumes from applicants, independently rank order them; come together as a committee, select the top 6 candidates and conduct first round of interviews; send all received resumes to City Council with a listing of their strengths and weaknesses but identify in no rank order their top 3 choices.

Voice vote: motion carried 7-0.

A motion was made by Mr. Zullo and seconded by Mr. Stone to nominate Councilor O'Hearne to the City Manager Search Committee.

Voice vote: motion carried 6-0 with Mr. O'Hearne abstaining

A motion was made by Mr. Pope and seconded by Ms. Kier to nominate Assistant Mayor Damren to the City Manager Search Committee.

Voice vote: motion carried 7-0

A motion was made by Mr. Zullo and seconded by Mr. O'Hearne to nominate Councilor Stone to the City Manager Search Committee.

Ms. Kier believes there should be a woman on the committee. Mr. Pope agreed.

Roll Call:

Lessard - no

O'Hearne - yes

Stone - abstain

Zullo - yes

Kier - no

Pope - no

Lovett - no

Motion failed 4-2 with 1 abstaining

A motion was made by Ms. Kier and seconded by Mr. Pope to nominate Councilor Lessard to the City Manager Search Committee.

Voice vote: motion carried 7-0

Mr. O'Hearne stated he understands Councilor Kier point of view but Mr. Stone has put a lot of time and effort into this and he believes that Councilor Stone should be on the committee, so he would rather give up his seat on the committee.

A motion was made by Mr. Zullo and seconded by Mr. Pope to remove Councilor O'Hearne and nominate Councilor Stone to the City Manager Search Committee.

Voice vote: motion carried 7-0

Mr. Osgood, Ward 1 stated he did not hear complete charge for the search committee regarding advertising.

Mayor Lovett said the three councilors that have been appointed to the committee will be the ones to begin the process of collecting feedback to build the profile and have the guidance of the outline.

After some discussion it was decided that anyone from the public wishing to be on the search committee will need to fill out a board application with a deadline of Thursday, April 18, 2019 in order to make it into the council packet.

Mr. MacLean will canvass the department heads and come back with the names before the next council meeting.

Re-imagine the JSL Discussion

Director Nancy Merrill reported that they held an open house at the JSL on March 20th, it was a great turnout, they had close to 90 people and most of the council was there. She sent out a thank you to Rebecca Vinduska and Debbie Freeman for help canvassing the neighborhood. There were a wide range of suggestions. She handed out a summary sheet she created from the responses and copy of the "Request for Developers" that was done back in September 2018. She said it had been a little discouraging as we had not received any responses from developers. We do not have it out to bid currently.

Mr. Pope said he was sorry he could not make it but heard there was a lot of interest. He also asked when the city sells a piece of property how to make sure someone does not buy it and let it sit there.

Director Merrill said all of our purchase and sales agreements have a reverter clause. We are ready to put this back out to bid now if the council is interested in doing that. The property would be sold as is and city would not be responsible for asbestos and any lead, potential buyers are given all information we have. Use for this building will be important because of it being located in a neighborhood.

Mayor Lovett thanked Director Merrill for organizing the event and really appreciates the handout. She also agrees we should strike while the iron is hot.

The council was in agreement to have Director Merrill put this back out to bid and report back to the council by early June.

NEW BUSINESS

Transfer of funds to established Water & Sewer Capital Reserve Accounts

Director Walter said last year we established 6 capital reserves accounts, transferred money into them and every year after the audit is completed, she calculates what should be going to these capital reserves and present the council with the figure. This has gone to the finance committee and they have reviewed the numbers.

A motion was made by Ms. Kier and seconded by Mr. Pope to transfer funds to Water and Sewer Capital Reserve Accounts.

WHEREAS on May 9, 2018 the City Council established Water & Sewer Capital Reserve Funds to begin saving for the future repairs, replacement and maintenance of the Water and Sewer Enterprise Systems and;

WHEREAS the City of Claremont established criteria for annual additions to be made each year to all six capital reserve funds;

The Claremont City Council hereby authorizes the transfer of funds to the following funds and hereby authorizes the City Manager or his designees to execute all documents and undertake all actions as may be required to implement this Motion.

	Water Fund	Sewer Fund
Emergency Plant/Infrastructure Replacement Capital Reserve	\$ 267,129	\$ 470,727
Stabilization and Contingency Capital Reserve	\$ 429,253	\$ 592,944
System Replacement Capital Reserve	<u>\$ 826,820</u>	<u>\$1,523,202</u>
Total Transfers	\$1,523,202	\$2,634,173

Voice vote: motion carried 7-0

Discussion of Process of Appointing Boards & Committee Members

Nancy Merrill presented a flow chart and stated applications are available online or in paper form at the Planning Office. The Resource Coordinator reviews them to make sure they are complete. Once appointments are made by the appointing authority there is another whole series of steps, she has to take to swear them in and notify other board members.

Mr. Pope asked her to explain what a major discrepancy would be.

Ms. Merrill stated it could be a number of things such criminal event, it may not be disqualifying but that is not up to staff it would be up to Council. It could be someone that wants to be on every board. Recently we sent an application to the City Manager because we noticed an incorrectness.

Mr. MacLean said in that case what we did was meet with the applicant and gave them a chance to explain and then moved the application forward.

Ms. Kier stated she just wants to make sure someone is not being disqualified just because of a criminal background.

Ms. Merrill said most times it just depends on what board they are applying for and it would be up to the council.

Ms. Walter told the council that staff is checking the application for completeness they are not screening the applicants. Staff collects the application and it is then sent to the council.

Ms. Merrill said there is nothing that prevents the council from interviewing the candidates, not necessarily as a whole board but one on one especially if they are new to a board.

Mr. McLean said in Keene the mayor screens all of the applications and brings them forward to the council.

Mayor Lovett said she has heard some ideas on how to improve the process and this could be put on a future agenda.

Ms. Merrill noted there is a "Strong Towns" presentation on April 2nd at 6:30 pm at the Claremont Savings Bank Community Center. Strong Towns is a national organization, very focused on resilient communities.

Mr. Osgood, Ward 1 said he has been on the Airport Advisory Committee for many terms, and has to fill out a new application every time, seems like there would be a better way to stream line this.

Service Recognition of Retirees/Procedure for Recognition Process

Mr. MacLean said this is to let the council know we have kicked this program off. We are putting this onto the department to bring this information forward. This way we will start recognizing our staff more often which is a good thing to do for the moral of the organization. Also, a good thing for the council and the community behind you.

Mr. O'Hearne stated, he would just repeat what he has said before, when someone retires from the City after 20+ years they deserve a proclamation. He feels we should go back to the beginning of the year and recognize those that have retired.

Mayor Lovett says she is hearing that the council would like to present a proclamation from Mayor and City Council to all retiring personal.

Ms. Kier stated she feels accomplishments should also be recognized. Some organizations recognize for certain years of service.

Mr. MacLean said there would be costs so we will have to build that into our budget, as we mount the proclamation on something.

O'Hearne stated he has seen proclamations from US Senators and they come in a nice blue folder.

Mr. MacLean said we will work on something and bring it back to the council.

Discussion on Legal Communications to all Council Members

Mayor Lovett explained that a couple meetings back during Future Agenda Items and Directives Councilor Stone wanted to make a motion and the council said no because motions are not done under this section and that it would be put on a future agenda.

A motion was made by Mr. Stone and seconded by Mr. O’Hearne to direct the city manager to advise any legal counsel the city uses to make sure any time any councilor member, to include the Mayor or Assistant Mayor, reaches out for a legal opinion that every council member receives the legal opinion unredacted from that attorney’s office.

Voice vote: motion carried 7-0

Mayor Lovett said she believes this would be better served under council rules.

Mayor Lovett feels that because of the cost it is not a good idea that individual council members contact legal.

After some discussion it was the consensus that the purpose of this is to make sure all council members are made aware that a council member is requesting a legal opinion and that those requests should go through the Mayor.

Mr. MacLean said the client is the full city council and it sounds like the process is working and you just want to hard code it in your rules.

Mayor Lovett said the proposal for Council Rule regarding Legal Counsel will be presented at the next meeting.

Discussion on Council Priorities

A motion was made by Mr. O’Hearne and seconded by Ms. Kier to table this until the meeting of April 10, 2019

Voice vote: motion carried 7-0

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Pope mentioned that Senator Hassan came to the Sugar River Valley Regional Tech Center and was able to observe our students in action and spoke with several students. She was there for more than 2 hours and she was very impressed with what we have going on in our schools. Also, the 4H group had various representatives go to one of their government meetings.

The council set a tentative date of Monday, May 6th for the joint school meeting, that had to be rescheduled.

Mayor Lovett said that Earth Day is April 22nd, historically council members have picked projects in their wards. This has been a great way to do some community building and get some trash cleaned up. Last year city staff gave us a list of hot spots. Also, free tire day at the Transfer Station is Saturday, April 20th.

Mr. MacLean said he will have the Food Truck Ordinance for the next meeting. He also let the council know they will need to schedule budget meeting dates. We will be bringing forward the zoning board application for Michael Lemieux. And will need to discuss qualifications and application process for Board of Assessors. Also, upcoming will be a presentation by Steel Mill Solar, they are proposing a 10-megawatt solar project for the city.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:12p.m., a motion was made by Mr. O’Hearne and seconded by Ms. Kier to adjourn.

Voice vote: motion carried 7-0

Respectfully Submitted,

Gwendolyn R. Melcher
City Clerk